1951

F

FAR EASTERN DEPARTMENT

JAPAN

FJ 1022/225

2

FROM

M. Tomlinson (W'ton)

To

M. Johnston.

No. 1076/194/151.

Dated 31st March 1951.

Received in Registry—5th April 1951.

Japanese Peace Treaty: encloses a copy of a speech to be made on March 31st by Mr Dulles on United States views.

REFERENCES

92539

(Print)

(How disposed of)

a) Balance & circ. spilt

MINUTES

This is an excellent public account of the U.S.A.'s views on the Japanese peace treaty. Its merit was somewhat dimmed at first by the emphasis given by the press to Mr. Dulles's criticism of restrictions on ship-building (p.5.). Now it is clear that Mr. Dulles did a good job in explaining his draft treaty to the world.

39451

Copy enclosure only To I.C.R.O.

(Action completed)	(Index)
5/5	25/6/51

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1951

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FAR EASTERN DEPARTMENT

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FROM

M. Jenkins (W'ton)

To

M. Gallagher.

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Received in Registry—5th April 1951.

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(Index) Kmd 25/6/51

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C.R.O.

See also – 122 att. W.H. Maddocks 11/4.

June 19/4

American Dept. (U.S.).

C. & D. [illegible] 4/4

F.O. R/D. Rec'd 2/5

I agree

[illegible] 4/4.

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19/4

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Mr. G. P. Scott
reuter

BRITISH EMBASSY
WASHINGTON

RESTRICTED
AIR FREIGHT
Ref: 1076/194/51

FJ 1022/225

31st March 1951

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Dear Charles,

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2. Dulles was at pains to inform the Embassies here of all interested governments that he intended to make the speech, and give them the text well in advance. The State Department believe that the principles on which the Treaty is to be based and all general aspects of it can and should now be the subject of public discussion, and hope that other governments will feel free to publish their views. Dulles explained that this did not involve any change in their view that their draft text itself, and any texts which other countries may produce, should for the time being remain confidential.

Yours ever

Tommy

(F. S. Tomlinson)

C. H. Johnston, Esquire,
Japan and Pacific Department,
Foreign Office,
London, S.W.1.

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DEPARTMENT OF STATE

FOR THE PRESS

MARCH 29, 1951
No. 237

CAUTION
FUTURE RELEASE
NOTE DATE

FOR RELEASE AT 9:00 P.M., E.S.T., SATURDAY, MARCH 31, 1951.
NOT TO BE PREVIOUSLY PUBLISHED, QUOTED FROM OR USED IN ANY WAY.

ADDRESS BY THE HONORABLE JOHN FOSTER DULLES AT THE FIFTIETH ANNIVERSARY DINNER OF WHITTIER COLLEGE, LOS ANGELES, CALIFORNIA, SATURDAY, MARCH 31, 1951

(Mr. Dulles' address will be carried by the Columbia Broadcasting System at 11:30 P.M., E.S.T., and will be repeated over the CBS Pacific Network at 10:15 P.S.T.)

PEACE IN THE PACIFIC

I am grateful to Whittier College for giving me this opportunity to make a progress report on Peace in the Pacific. That subject is, I suppose, of particular interest to Americans who live on our West coast. Actually, peace in the Pacific is equally important to all of us, for danger and effort can no longer be localized.

Two principal postwar goals of the Soviet communists are Japan and Germany. If Russia's rulers could exploit the industrial and human potential of either Japan or Germany, it would be a sad day for peace. That would involve such a shift in the balance of world power that these new imperialists might calculate that they could start a general war with good prospect of success. They know that Japan, even alone, was able seriously to menace the free world in the Pacific and they imagine vast possibilities out of a combination, under their direction, of the Asiatic power of Russia, China and Japan.

Fortunately, the Japanese people do not want that combination, which would make them the front line of a new aggression which in the end would mean disaster far greater than that which they have already suffered. They are in a mood to reject militarism in all of its aspects, and they want fellowship with the nations which genuinely seek peace through collective security in accordance with the principles of the United Nations. Thus there is the opportunity to make a Japanese peace which will not only end the old war, but give new strength and hope to those who strive to prevent another war.

To achieve that kind of peace is the President's mandate to the Mission which I have the honor to head and President Truman, Secretary Acheson and Secretary Marshall are each of them giving this effort their close personal attention, to the end that this great goal shall be achieved.

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Since our Mission was established last January, we have had a busy time. All or some of us have been to Japan, the Philippines, Australia, New Zealand and England. We have consulted in Washington with ambassadors of other nations and also with the many in the Executive and Legislative branches of our Government whose wisdom, judgment and special knowledge can be helpful. The Foreign Relations Committee of the Senate, its Far Eastern Sub-Committee and the Foreign Affairs Committee of the House have extended the utmost cooperation. As a result of all this, we have seen the possibility of formulating peace terms which should command general support here at home, which should involve no insoluble differences with our allies, and which should be acceptable to Japan, which we consider has now earned the right to be consulted.

So, this week, we have begun to discuss, with our allies principally concerned in the Pacific war, actual texts which might be incorporated in an eventual treaty. These texts are still "working papers", tentative and suggestive only.

We contemplate a simple document, limited to the essentials of peace.

Preamble

Our present thought is to have a Preamble to the Treaty which would afford the Japanese people the opportunity to express their intentions as to matters which are important, but which for one reason or another do not lend themselves to absolute contractual undertakings.

For example, Japan might indicate its intention to apply for membership in the United Nations. There is no doubt about the reality of that intention, but we think that Japan's application for membership, when it comes, should bear the unmistakable imprint of Japan's own desire, without the slightest taint of external compulsion. Similarly, the Japanese may want to express their intention to carry forward the new ideals as to human rights and like matters which are largely embodied in Japanese legislation under the occupation and which are the subject of the United Nations Universal Declaration of Human Rights. They may want to declare their intention, in public and private trade and commerce, to conform to internationally-accepted fair practices.

Japan's intentions in these respects are vitally important and go to the heart of our future relations. But except as these matters have already been spelled out in international conventions which Japan could and would adopt, they do not lend themselves to peace treaty obligations, which should only be such as can be precisely formulated so that the parties will clearly know just what are their rights and duties.

Territory

The treaty proper would prescribe the territory over which the Japanese will hereafter be sovereign. It is contemplated, generally speaking, that Japan's sovereignty should be limited in accordance with the agreed surrender terms. That would mean sovereignty over the four home islands and minor adjacent islands. There would be a renunciation by Japan of all rights, titles and claims to Korea, Formosa, the Pescadores and the Antarctic area. Also the treaty might contemplate that in the Ryukyu and Bonin islands there could be United Nations trusteeship and continuing United States administrative responsibility.

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The South Sakhalin and Kurile islands were allotted to Russia at Yalta and are actually in Russian possession. Any peace treaty validation of Russia's title should, we suggest, be dependent upon Russia's becoming a party to that treaty.

Security

The security of Japan itself should, we think, be worked out through individual and collective self-defense arrangements authorized by the United Nations Charter. Thus the peace treaty itself need only affirm that, upon the coming into force of the peace, Japan would in fact possess what the Charter of the United Nations refers to as the "inherent right" of sovereign nations in these respects.

Commercial

As regards commercial arrangements, we do not think that the treaty of peace should itself attempt to define what should be the future permanent relations between the Allies and Japan. These might better be left for subsequent negotiation between a free Japan and other friendly nations. However, to prevent confusion and to minimize discrimination immediately following the coming into force of the treaty, Japan might, for such a period as three years, agree to accord most-favored-nation treatment to the Allied Powers, except that Japan would not, in any matter, be required to extend more favorable treatment than is accorded it. Similarly, as regards civil air traffic rights, Japan might for three years, and pending the conclusion of civil air transport agreements, grant the Allied Powers not less favorable conditions than those prevailing at the time of the coming into force of the treaty.

Property and Claims

With respect to property and claims, the treaty of peace might give the Allied Powers the right generally to vest, retain and dispose of Japanese property within their territory, while Japan should return prewar allied property in Japan and validate prewar claims belonging to Allied Powers and their nationals.

The foregoing matters can, we believe, now be dealt with with considerable precision. There are others which are still subject to exploration and development.

Japan's Security

Since Japan is now thoroughly disarmed and materially and legally unable now to maintain armed forces, there is need for provisional security measures. Accordingly, with the authority of the President, and following conversations with Committees of Congress, I stated publicly in Japan that, if the Japanese wanted it, the United States would sympathetically consider the retention of United States armed forces in and about Japan, so that the coming into force of a treaty of peace would not leave Japan a vacuum of power and, as such, an easy prey to such aggression as has already shown itself in nearby Korea. This suggestion of mine was warmly welcomed by the Japanese Government and the people generally, so that it is now in order to study the implementation of such an arrangement.

Since Japan is an island, its security is strongly influenced by sea and air power, power which the United States is in a position to exercise in the Pacific. The defense of Japan need not require, either now from the United States or ultimately from Japan, as large ground forces as might be thought to be necessary if Japan had common land boundaries with militaristic powers.

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Bound

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Pacific Security

Bound up with the problem of Japan's security is the broader problem of security in the Pacific. Japan should hereafter make some contribution of its own to security, but this should never be the pretext for militarism that could be an aggressive threat. Thus, the problem has a dual aspect.

No nation able to make a dependable contribution to security should get a "free ride". In our Senate, the Vandenberg Resolution has laid down, for the United States, the basic proposition that collective security arrangements should be based upon "continuous and effective self-help and mutual aid". The United Nations Charter also establishes that all peace-loving states should stand ready to contribute armed forces, assistance, and facilities for the purpose of maintaining international peace and security. That is one aspect of the problem. The other side of the problem is that Japan should never again develop armament which could be an offensive threat or serve other than to promote peace and security in accordance with the purposes and principles of the United Nations Charter. The peace we seek is one which will for all time liberate Japan's neighbors and indeed the Japanese people from the nightmare of militarism.

When we were in Canberra, Australia, our Mission had significant discussions on this subject with the Governments of Australia and New Zealand. They made convincingly clear the attitude of their peoples on this subject. Now we are working actively to find the ways to secure the desired results.

We believe that out of our discussions, which are now well advanced, there will emerge a series of arrangements which on the one hand will enable the Japanese to make their own indispensable contribution to preventing their nation's being forced into the service of the new imperialism that ominously threatens from the mainland, and which on the other hand will effectively assure that there will be no unbridled rearmament which could become an offensive threat.

The United States is able, and daily growing more able, to exert a mighty influence for peace and to make peace in the Pacific more secure than it has ever been before. We can see the way to remove the pall of fear which results from Japan's past conduct and from the present communist menace. But that is not a task which we would or should undertake single-handed and alone. In the Pacific, as elsewhere, security is a cooperative enterprise. Those who wish to cooperate for security can share the protection of immense deterrent power which, in the words of the United Nations Charter, "shall not be used, save in the common interest."

Since the arrangements for peace and security in the Pacific will in part be outside of the Peace Treaty and since the whole problem is not yet fully explored, we consider that any presently suggested Treaty provisions are to be supplemented in the light of the outcome of the promising exchanges of views which are now taking place, and to which we attach the utmost importance. No one should assume that the United States takes this problem lightly or that we shall accept a solution that will be illusory.

Reparations

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Reparations

As regards reparations, the United States does not question the inherent justice of the proposition that Japan should make good the damage done to others by its aggression. Reparation is, however, not merely a matter of what is just, but of what is economically practicable, without disastrous consequences. We have closely examined this problem. Considerable industrial machinery has already been removed from Japan and given to countries having reparation claims. Also, there is substantial Japanese property within allied countries which, as indicated, should be applicable to the satisfaction of claims. It is, however, not easy to see the possibility of Japan's providing future reparation out of her remaining capital assets or as a surplus from her current economic activity over coming years.

One of the gravest problems which confronts Japan, and it equally concerns the reparation creditors, is whether Japan, deprived of its formerly-owned sources of raw material and with a population of eighty-five million on four relatively small and barren islands, can maintain the standard of living and employment necessary to prevent widespread social unrest. This, if it occurred, would inevitably give rise to dangerous expansionist and explosive tendencies, which Japan's communist neighbors would joyously exploit.

The United States, to prevent social and economic unrest within Japan since the occupation began, has advanced about $2,000,000,000 for relief and economic assistance. That is a realistic measure of how seriously the United States views this problem and its responsibility as principal occupying power. However, the United States is not prepared, after the occupation ends, to continue indefinitely such economic relief. Neither is it willing in effect to pay Japanese reparations by putting into Japan what reparation creditors would take out. The United States considers indeed that its post-war advances have a certain priority status.

We doubt that it is practicable to get the essential overall and long-range results which are sought, if the treaty also seeks to extract reparation payments other than in terms of the Japanese assets already received from Japan or within the territory of the Allied Powers. However, the United States has not closed its mind on this subject and it is, with an open mind, actively exchanging views with countries which were most grievously damaged by Japanese aggression.

Economic Disabilities

Some suggestions have been made as to imposing upon the Japanese economic disabilities as, for example, requiring a dismantling of a part of Japan's industrial plant, particularly her shipbuilding capacity. As experience in Germany has shown, such provisions cannot be carried out without arousing great public bitterness. If the peace treaty required the first post-war Japanese Government physically to decimate Japan's industrial equipment, it would impose an almost inhuman burden, and the consequences would almost surely be against the best interests of the Allied Powers.

Fisheries

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Fisheries

It has been suggested, particularly along the Pacific coast, that the treaty of peace might itself attempt permanently to regulate the problem of Japanese participation in high-seas fisheries. To attempt that would almost surely postpone indefinitely both the conclusion of peace and the obtaining of the results which are desired.

There is, I believe, a considerable possibility of agreement between the United States and Japanese fishing interests. However, the treaty of peace is not a treaty merely between the United States and Japan; it is a treaty which we hope will be signed by all of the fifty-three allies. Most of these nations have their own fishing problems and their own theories of solution, which differ widely. No quick results can be won by attempting to make the peace treaty into a universal convention on high-seas fishing.

When I was in Japan, the Prime Minister advised me that the Japanese Government stood ready to negotiate fisheries agreements as soon as peace restores to Japan the possibility of independent sovereign action. He said that in the meantime the Japanese Government would prohibit Japanese nationals and Japanese vessels from going into conserved fisheries in all waters, and he mentioned specifically those off the coasts of the United States, Canada and Alaska.

The Japanese now see the importance of avoiding practices which in the past brought Japan much ill will, and if we can hold to our tentative time-table, there can, I believe, be an early and equitable settlement of this thorny problem.

A Peace of Reconciliation

From the foregoing it can be seen that the Japanese peace settlement we seek, while it would confirm the cut-back of Japan's territory to her home islands, would contemplate that Japan would be a sovereign and sustaining member of the free world. She would contribute in due course to collective security in accordance with her means, but without developing armament which could be an offensive threat. Also, from an economic standpoint, Japan would be expected to get along without such subsidies as the United States has been providing during the occupation. On the other hand Japan would be restored to a position of equality, free of burdensome and discriminatory conditions. In essence, the peace would be one of reconciliation.

That is not the kind of a peace which victors usually grant to a vanquished nation which has committed armed aggression on a vast scale. It is not surprising that some, made bitter and distrusting by Japan's past conduct, would like to impose upon Japan continuing burdens and restrictions. Some of these, taken separately, seem to have justification and perhaps no one of them alone would be of decisive historical significance. In the aggregate, however, they would fundamentally change the character of the peace settlement.

The major objective of any Japanese peace treaty is to bring the Japanese people hereafter to live with others as good neighbors That does not require that the Japanese people should be pampered. It does mean that the victors should not take advantage of Japan's present helpless state to impose, for the future, unequal condition It means that the peace settlement should restore the vanquished to a position of dignity and equality among the nations.

The peace

Fisheries

It has been suggested, particularly along the Pacific coast, that the treaty of peace might itself attempt permanently to regulate the problem of Japanese participation in high-seas fisheries. To attempt that would almost surely postpone indefinitely both the conclusion of peace and the obtaining of the results which are desired.

There is, I believe, a considerable possibility of agreement between the United States and Japanese fishing interests. However, the treaty of peace is not a treaty merely between the United States and Japan; it is a treaty which we hope will be signed by all of the fifty-three allies. Most of these nations have their own fishing problems and their own theories of solution, which differ widely. No quick results can be won by attempting to make the peace treaty into a universal convention on high-seas fishing.

When I was in Japan, the Prime Minister advised me that the Japanese Government stood ready to negotiate fisheries agreements as soon as peace restores to Japan the possibility of independent sovereign action. He said that in the meantime the Japanese Government would prohibit Japanese nationals and Japanese vessels from going into conserved fisheries in all waters, and he mentioned specifically those off the coasts of the United States, Canada and Alaska.

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The peace would be a peace of trust, not because the past justifies trust, but because the act of extending trust usually evokes an effort to merit trust. It would be a peace of opportunity, in that it would afford the Japanese people the same opportunity to develop peacefully their domestic economy and their international relations as are enjoyed by most of the other free nations of the world.

United States Responsibility

In proposing that kind of a peace, the United States assumes a serious responsibility, for the results cannot be guaranteed. We have, however, a duty to exercise our best judgment as to the kind of peace which will endure. Circumstances have made our duty inescapable.

In the great war in the Pacific, we had valiant allies who, through long, hard years, poured out life and treasure according to their means. But the United States possessed most of the means required for victory in the Pacific. The United States has carried the responsibility of occupation, and the accomplishments of General MacArthur as Supreme Commander represent a moral investment to which his countrymen cannot honorably be indifferent. The United States has contributed the economic aid which has prevented the post-war misery which would have exposed Japan to capture by communism. The United States is the member of the free world which possesses large present and prospective military power in the western Pacific, and today we are the principal contributor to the United Nations effort in Korea, which fends off danger to Japan, to our Pacific allies, as well as to ourselves.

These are some of the circumstances which require the United States to exercise an initiative for peace; to do so while there is still time, and to shape that initiative with all of the wisdom and all of the vision that is available. For a misjudgment as to timing or as to substance, can bring incalculable disaster to all mankind.

The United States does not consider that it has any monopoly of responsibility, nor any monopoly of experience, wisdom and enlightenment that are required. We have no desire to "go it alone" nor have we the slightest thought of dictating. We continuously have sought and shall seek the views of others and, indeed, our present suggestions are a composite, not deriving from any single source. They reflect the ideas of many, and the United Kingdom and Australia are two important sources of actual language that we accept. However, in the last analysis, the United States cannot, in justice to our own people, or indeed to others, become co-sponsor of a peace settlement which in our judgment, made after ample consideration without arrogance and in humbleness of spirit, would throw unnecessary and intolerable burdens of a military or economic character upon the United States, and jeopardize the lasting peace that the war was fought to win.

No Veto

Happily, the exchanges of views which have taken place have, with one exception, been altogether cordial and no basic disagreements have developed. The Government of the Soviet Union is, perhaps, an exception. For three months its representative joined with us in full and frank discussions. But now that a peace treaty with Japan seems actually to be in the offing, the Soviet leaders seem to have taken fright. The Soviet Government has publicly announced that it will not resume discussions with us.

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When peace is far off; the Russian leaders speak lovingly of peace. But when peace comes near, they shun peace like the plague.

We continue to hope that the Soviet leaders will join in a treaty of peace which would cost them nothing and which would start a relaxing of tensions which would be felt all around the globe. We are ready to give scrupulously full consideration to any views they may express. We shall steadily urge that they join in the Japanese Peace.

Fortunately, however, Soviet participation is not indispensable. The Soviet Union has no legal power to veto. It has no moral due-bills, for its vast takings in Manchuria, Port Arthur, Dairen, Sakhalin and the Kuriles repay it a thousand-fold for its six days of nominal belligerency. Japan, unlike Germany and Austria, is not divided by zones of occupation.

In relation to Japan there is the opportunity to show which of the Allies of World War II now have the genuine will for peace. There is the opportunity for them to make a peace so righteous that the example will hearten and uplift men everywhere. That is the opportunity; and to its challenge we are determined worthily to respond.

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